

22PSCV03111 22PSCV03111

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Doe v. The Salvation Army, Case No. 22PSCV03111

ORDER ON EX PARTE APPLICATION TO ADVANCE HEARING DATES FOR MOTIONS TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA AND REQUESTS FOR SANCTIONS

Pending

before the Court is Defendant The Salvation Army's ex parte application to advance the hearing dates of motions to compel compliance with deposition subpoenas. For the reasons stated herein, the Court denies the application, without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.) Moreover, a party "cannot create a justification for emergency relief by sitting on her rights until she creates an emergency situation." (Davenport v. Blue Cross of California (1997), 52 Cal. App. 4th 435, 454-55.)

Here, Defendant

has not demonstrated immediate danger or irreparable harm warranting emergency ex parte relief. The Court observes that the hearing dates are prior to the discovery cutoff date and more than 15 days before the trial date. (See Code Civ. Proc. § 2024.050 ["any party shall be entitled as a matter of right . . . to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action"].) Accordingly, the application is denied.

Defendant is directed to provide notice.